

		of a jury trial on statutory claims while giving Defendant a forum advantage at no reciprocal cost. Plaintiff presents no evidence to support the broad assertion of fact on which he predicates his conclusion that Defendant MBUSA receives an advantage without a reciprocal burden. Indeed, regardless of whose claim it is, Defendant gives up a jury trial along with Plaintiff. Further, where the jury waiver stems from the nature of arbitration itself, which is incompatible with a jury trial, unconscionability has been held not to exist. (See <i>Prima Donna Dev. Corp. v. Wells Fargo Bank</i> (2019) 42 Cal.App.5th 22, 43, 44.) In sum, Plaintiff shows some amount of procedural unconscionability but no substantive unconscionability. For these reasons, the court GRANTS Defendant MBUSA's motion to compel arbitration and hereby STAYS the action pending resolution of the parties' binding arbitration. The court VACATES the Case Management Conference scheduled for 09/18/2026. The court hereby SETS a Post Arbitration Status Conference for 04/09/2027 at 8:30 a.m. in Department C16. Plaintiff SHALL file and serve a status report no later than 10 court days before the Post Arbitration Status Conference Hearing. Moving Defendant to give notice.
56	Bacher vs. Prasad 22-01265088	Motion for Attorney Fees The Motion for Attorney Fees brought by Plaintiff Michael Scott Bacher dba Designer Properties is GRANTED, in part. Defendants Ramesh Prasad, Madhu Prasad, and Ajeshni Doreen Singh are jointly ordered to pay attorneys' fees to Plaintiff, pursuant to Civil Code section 1717, in the amount of \$51,195.00. It is undisputed the parties executed a "Buyer Representation Agreement – Exclusive," which includes an attorney fee provision to the prevailing party. (¶13 of Knierim Declaration and Exhibit 1 thereto, at §9 [ROA No. 463].) As judgment was entered against Defendants, with respect to Plaintiff's claim for breach of the above contract (ROA Nos. 224 and 455), Plaintiff is the prevailing party thereon.

		While it is true Plaintiff dismissed his claim for breach of the implied covenant of good faith (See ROA No. 357), this claim was duplicative. (See in <i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1396 and 1401; See also ¶30-¶35 of FAC [ROA No. 77].) Similarly, while Defendants pursued a Cross-Complaint against Plaintiff, which likewise included contract claims, this Cross-Complaint was ultimately dismissed. (ROA No. 215.) Consequently, Plaintiff is “the party who recovered a greater relief in the action on the contract.” (Civ. Code, § 1717, subd. (b)(1).) In opposing this motion, Defendants dispute Plaintiff’s compliance with a mediation provision encompassed within the agreement. The relevant contractual language states as follows: “If, for any dispute or claim to which this paragraph applies, any party (i) commences an action without first attempting to resolve the matter through mediation, or (ii) before commencement of an action, refuses to mediate after a request has been made, then that party shall not be entitled to recover attorney’s fees....” (¶13 of Knierim Declaration and Exhibit 1 thereto, at §11(A).) To establish compliance, Plaintiff attaches a Demand for Mediation made on December 14, 2021. (¶6 of Knierim Declaration and Exhibit 4 thereto.) The evidence indicates Defense Counsel responded to this demand on December 16, 2021, stating: “In accordance with the contract they are willing to participate in mediation...I would suggest using Peter Smith whose resume is attached as a mediator.” (¶7 of Knierim Declaration and Exhibit 5 thereto; See also ¶5 of Mehta Declaration and Exhibit A thereto.) On that same day, Plaintiff’s Counsel stated: “My preference is to use a mediator with broker experience. Attached are CV’s from Roger Moss and Frederic Trester to consider. Their rates are also less. Please review and we can talk tomorrow morning at 9:00 a.m., if you are available.” (¶7 of Knierim Declaration and Exhibit 5 thereto.) Plaintiff, additionally, offers an email dated February 1, 2022, wherein Plaintiff’s Counsel states: “This is a follow up after your clients last communication dated 1-7-2022 and a request for a status update, move forward with the Buyer Representation Agreement or Mediation.” (¶8 of Knierim Declaration and Exhibit 6 thereto.) Subsequent to the above, on April 5, 2022, and again on April 8, 2022, Plaintiff himself emailed Defendants Ajeshni Doreen Singh and Madhu Prasad, requesting a response to the above referenced February 1, 2022, email. (¶10 of Knierim Declaration and Exhibit 8 thereto.) Finally, on May 2, 2022, a formal letter was sent to Defendants, which outlined the nature of the dispute and again requested mediation pursuant to ¶11 of the Buyer Representation Agreement. (¶11 of Knierim Declaration and Exhibit 10 thereto.)
--	--	--

		Plaintiff has since confirmed that no responses to the above communications were received. (See ¶13-¶17 of Lancaster Declaration [ROA No. 539] and ¶14-¶19 of Bacher Declaration [ROA No. 540].) Given that Plaintiff made multiple mediation requests between February and June of 2022, to which Defendants did not respond, the Court finds Plaintiff complied with the mediation provision. While it is true that Defendants agreed to participate in mediation, on December 16, 2021 (¶17 of Knierim Declaration and Exhibit 5 thereto [ROA No. 463]; See also ¶15 of Mehta Declaration and Exhibit A thereto [ROA No. 510]), their subsequent failure to respond to Plaintiff's mediation-related communications indicates Defendants were unwilling to follow through with their earlier agreement. Thus, while Plaintiff did not schedule a mediation, this was in response to Defendants' apparent rejection of the request. In opposing the motion, Defendants offer an email from Plaintiff's Counsel dated September 14, 2022, wherein Plaintiff again offered mediation. Additionally, Defendants attach an email from former Defense Counsel Patricia Welling, wherein Ms. Welling states "despite Mr. Trester's request for mediation last month, you indicated that the client is now not interested in mediation." (¶17 of Mehta Declaration and Exhibit C thereto.) Defendants suggest the above evidence shows that Plaintiff refused to mediate after a request for mediation was made; however, the relevant contractual provision prohibits recovery of attorneys' fees only where such a refusal occurs "before commencement of an action...." (¶13 of Knierim Declaration and Exhibit 1 thereto, at §11(A).) As the above emails were sent after an action was initiated, they are irrelevant for purposes of determining compliance with ¶11 of the BRAE. Proceeding to the amount of reasonable fees incurred, "the fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) Based on the experience of the identified individuals and the Court's own knowledge of the legal market (See <i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41), the Court approves the following hourly rates: (1) \$400 for Michael J. Lancaster; (2) \$325 for Daneil J. Knierim; (3) \$400 for Fred Trester; and (4) \$130 for Wendy Lee. (See ¶18 of Lancaster Declaration [ROA No. 539], ¶18-¶22 of Knierim Declaration [ROA No. 463]; and ¶13-¶17Supplemental Knierim Declaration [ROA No. 541].) As previously noted within the order dated June 12, 2026, the Court finds that Plaintiff is not entitled to recover fees incurred solely as the result of litigation against Defendants Agarwal Markarian Holdings, Inc. and
--	--	--

		Inderjit Ghusar (“Broker Defendants”), as no contractual right to attorneys’ fees has been shown, as against these parties. (See ROA No. 519.) This matter was previously continued with the following instructions: “Plaintiff is ordered to resubmit his billing, with all entries relating solely to litigation against the Broker Defendants removed. Counsel for Plaintiff is also ordered to provide a summary of the work performed, similar to the summary offered within ¶25 of the Knierim Declaration, limited to work performed against the Client Defendants.” (ROA No. 519.) While “verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous” (<i>Horsford v. Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396), significant discrepancies exist, between the original Declaration of Daniel Knierim and the Supplemental Declaration of Daniel Knierim, submitted after the Court ordered removal of fees relating to the Broker Defendants. While the overall number of requested hours has been reduced from 703.70 to 579 (Compare ¶25 of Knierim Declaration [ROA No. 463] with ¶10 of Supplemental Knierim Declaration [ROA No. 541]), several individual entries have been inexplicably increased. The hours now claimed for July 2022, September 2022, October 2022, November 2022, July 2023, September 2023, December 2023, March 2024, April 2024, May 2024, July 2024, November 2024, December 2024, February 2025, June 2025, and March 2026, are all higher than originally represented by Counsel. (Compare ¶25 of Knierim Declaration [ROA No. 463] with ¶10 of Supplemental Knierim Declaration [ROA No. 541]) Some of the more egregious examples are as follows: While Plaintiff initially claimed that 9.8 hours of labor was completed in September of 2022 (¶25 of Knierim Declaration [ROA No. 463]), following the purported removal of fees incurred against the Broker Defendants, this figure shot up to 30.3 hours. (¶10 of Supplemental Knierim Declaration [ROA No. 541].) Likewise, while Plaintiff initially claimed that 8.8 and 33.3 hours of labor were completed in April and May of 2024, respectively (¶25 of Knierim Declaration [ROA No. 463]), following the purported removal of fees incurred against the Broker Defendants, these figures shot up to 49.1 and 105.7. (¶10 of Supplemental Knierim Declaration [ROA No. 541].) As a similar example, while Plaintiff previously claimed that 269.8 hours were incurred in 2024 (¶25 of Knierim Declaration [ROA No. 463]), following apportionment, Plaintiff now claims 325.1 hours for this same year. (¶10 of Supplemental Knierim Declaration [ROA No. 541].)
--	--	---

		With respect to the months with discrepancies, in several instances the attached invoices confirm a lower number of hours were billed, than is currently being claimed. (See ¶9 of Supplemental Knierim Declaration and Exhibits 1, 3, 5, 6, 14, 16, 19, 24, 26, 30, 31, 33 and 45, thereto [ROA No. 541].) “A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (<i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635.) “If...the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked for in the first place. To discourage such greed, a severer reaction is needful.” (Ibid; See also <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321-1322.) “Similarly, counsel may not submit a plethora of noncompensable, vague, blockbilled attorney time entries and expect particularized, individual deletions as the only consequence. The trial court could reasonably conclude counsel made no effort to prune the fee request to comply with the law. Counsel erred grievously by attempting to transfer that responsibility onto the trial court. The trial court could reasonably conclude counsels disregard for the law undercut the credibility of their fee request and, as officers of the court, warranted a severe reaction.” (<i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1329.) The above unexplained discrepancies severely call into question Counsel’s credibility. In particular, the discrepancies indicate that, rather than removing the billing related to the Broker Defendants as ordered by the Court, Counsel inflated the billing connected to the Client Defendants, to lessen the loss. Given the unexplained increases, the Court finds that “counsel made no effort to prune the fee request to comply with the law.” (<i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1329.) While the Court arguably has discretion to deny the fee request entirely, the Court will instead strike all fees requested in each inflated month. Consequently, all fees requested in the following months are denied: July 2022, September 2022, October 2022, November 2022, July 2023, September 2023, December 2023, March 2024, April 2024, May 2024, July 2024, November 2024, December 2024, February 2025, June 2025, and March 2026. As indicated above, were the Court to simply reduce the amount of hours to those previously requested: (1) It would remain unclear what portion is attributable to the Broker Defendants; and (2) The same would encourage further inflation attempts in the future.
--	--	---

		In addition to the above, independent review of the Invoices attached to the Supplemental Declaration of Daniel Knierim, revealed multiple instances wherein the invoices contradict the summary provided by Plaintiff's Counsel. For example, while Plaintiff claims 13.1 hours for January of 2023, 4.9 hours for February of 2023, and 2.5 hours for March of 2023 (¶10 of Supplemental Knierim Declaration [ROA No. 541]), Exhibits 8 through 10 indicate that, after removing fees related to the Broker Defendants, the correct figures are 4.9, 2.5 and 1.4, respectively. (¶9 of Supplemental Knierim Declaration [ROA No. 541].) The Court will reduce the above hours to the amounts reflected within the attached invoices. Finally, the Court finds that the reasonable amount of hours incurred in connection with this motion is 10.0. Applying the above herein, the Court approves the following hours as reasonable: (1) 1.25 for Michael J. Lancaster; (2) 139.2 for Daneil J. Knierim; (3) 0.8 for Fred Trester; and (4) 39.5 for Wendy Lee. Based on all the above and applying the approved hourly rates, Plaintiff is awarded attorney's fees in the amount of \$51,195.00.
57	Little vs. Kohl's, Inc. 24-01422356	Motion for Order Continued pursuant to Court's Minute Order dated 09/10/2026
59	Gonzalez vs. Toyota Motor Sales, U.S.A., Inc. 24-01430398	Motion to Strike or Tax Costs Defendant Toyota Motor Sales, U.S.A., Inc.'s motion to tax costs is DENIED. Defendant moves to tax \$259.41 from Plaintiff's claimed costs. The cost is described as Records Retrieval from Oremor of Tustin, LLC, d/b/a Tustin Toyota. (Plaintiff's Memo. of Costs, p. 4, Attachment 5D.) Plaintiff opposes the motion. Plaintiff is entitled to his "costs and expenses" incurred in pursuing his Song-Beverly Act claims. (Civ. Code, § 1794, subd. (d).) Section 1794(d)